



***Addressing the legality of
state sponsored operations***

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United Nations Legal Committee (6th General Assembly Committee)

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I. Introduction

“Those who condone nations that sponsor terror will find that it comes back to bite them.”

— Dr. S. Jaishankar, External Affairs Minister of India

In the modern geopolitical landscape, the line between war and peace has become increasingly blurred. States no longer rely solely on conventional military forces to achieve their objectives. Instead, they increasingly turn to "state-sponsored operations"—actions carried out by proxy militias, private military companies (PMCs), or state-backed hacker groups (Advanced Persistent Threats, or APTs).

The primary challenge for the Sixth Committee is that international law, largely drafted in the mid-20th century following World War II, struggles to address these "gray zone" operations. By keeping their actions below the traditional threshold of an "armed attack," sponsoring states achieve their strategic goals while maintaining plausible deniability, paralyzing the victim state's legal right to self-defense. The GA6 is tasked not with disarmament (which falls to GA1), but with the complex legal challenge of **State Responsibility: determining how existing legal frameworks apply to modern hybrid tactics, and whether codification of new legal thresholds is required.**

II. Definition of Key Terms

- **State-Sponsored Operation:** Covert or overt actions (kinetic, cyber, or economic) directed, funded, or supported by a government, but executed by non-state actors or intelligence agencies to maintain plausible deniability.
- **Attribution:** The process of identifying the actor responsible for a cyberattack or proxy operation and legally tying that actor back to a specific state.
- **Plausible Deniability:** The ability of a state to deny involvement in an operation because there is no definitive, legally admissible proof of their direct command and control.
- **Proxy:** A figure, group, or country authorized to act or stand in for another, more powerful nation.
- **Proxy Warfare:** A conflict in which two opposing states fight by supporting mutually hostile non-state actors (e.g., rebel groups or militias) rather than engaging each other directly.
- **Use of Force (Article 2(4)):** The UN Charter prohibits the "threat or use of force against the territorial integrity or political independence of any state."

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- **Armed Attack:** A higher threshold than a "use of force." Under the UN Charter, a state only has the inherent right to self-defense (including kinetic military retaliation) if an "armed attack" occurs.
- **Due Diligence:** A principle of international law requiring states to ensure their territory (or digital infrastructure) is not used by non-state actors to harm other states.
- **Countermeasures:** Acts that would normally be illegal under international law but are legally justified because they are taken in response to a prior internationally wrongful act by another state (e.g., "hacking back").

III. Background Information

The central dilemma of state-sponsored operations is establishing **State Responsibility**. The GA6 relies heavily on the **Articles on the Responsibility of States for Internationally Wrongful Acts (ARSIWA)**, drafted by the International Law Commission (ILC) in **2001**.

The Attribution Problem and ARSIWA:

- **Article 4 (State Organs):** If a nation's official military hacks a grid, the state is clearly responsible.
- **Article 8 (Direction or Control):** This is the core of the proxy debate. It dictates that conduct is attributable to a state if a non-state actor is acting on the instructions of, or under the direction or control of, that state.
- **Article 11 (Acknowledgment):** If a state publicly adopts the actions of a proxy after the fact, they assume legal responsibility (e.g., Iran's historical backing of proxy actions in the Middle East).

The Threshold Tests (Case Law): To satisfy Article 8, international courts have debated how much control a state must have:

- **The "Effective Control" Test (*ICJ, Nicaragua v. United States, 1986*):** The International Court of Justice ruled that funding and equipping a proxy is not enough; the sponsoring state must direct the specific operations in which the violations occurred. This is a very high bar, making it highly difficult to hold states legally responsible for modern cyber proxies.
- **The "Overall Control" Test (*ICTY, Tadić Case, 1999*):** The International Criminal Tribunal for the former Yugoslavia proposed a lower threshold, arguing that a state only needs to have "overall control" (equipping, financing, and generally participating in the planning) over a group to be held responsible.

In cyberspace and proxy warfare, victim states heavily favor the **"Overall Control" standard**, while sponsoring states hide behind the strict "Effective Control" standard to maintain deniability.

IV. Major Countries and Organizations Involved

The United States and Western Allies (UK, France, EU)

The United States and its allies possess the most sophisticated cyber defense and offense capabilities, alongside highly advanced intelligence networks used for attribution. In the Sixth Committee, this bloc firmly argues that existing international law applies seamlessly to state-sponsored operations and cyberspace. They are the primary advocates for the legality of "countermeasures" (and collective countermeasures, where allies assist a victim state) as a necessary tool for deterrence. Through joint public attributions and the indictment of foreign state-sponsored hackers, Western nations actively try to establish customary international law by setting precedents for holding sponsoring states accountable.

During the 20th century, the United States aimed to eliminate Soviet or communist influence in the Western Hemisphere. This often involved moving beyond diplomacy into direct and indirect operations:

- **Brazil** (1964) In *Operation Brother Sam*, the U.S. supported a military coup to oust the democratically elected President João Goulart, whom they viewed as too soft on communism. The U.S. positioned a naval task force off the coast to signal support for the generals.
- **El Salvador** (1979–1992): During the Salvadoran Civil War, the U.S. viewed the government as a critical proxy against the FMLN (leftist guerrillas backed by Cuba). The U.S. provided billions in aid and sent "advisors" to train elite battalions.
- **Honduras** (1980s): Honduras became the geopolitical "aircraft carrier" for U.S. operations. It served as the primary base for the Contras - a proxy rebel group funded by the U.S. to destabilize the socialist Sandinista government in neighboring Nicaragua. The U.S. built airstrips and training camps across Honduras, effectively turning the country into a regional command center for anti-communist activity.
- **Colombia** (2000s–Present): Through *Plan Colombia*, the U.S. shifted focus toward a hybrid of counter-insurgency and the "War on Drugs." By providing massive military hardware and surveillance to the Colombian government, the U.S. used the state as a proxy to dismantle both drug cartels and leftist guerrilla groups like the FARC, ensuring a pro-Western stronghold in a volatile region.

The Russian Federation

Russia is a central figure in the debate over state-sponsored operations due to its extensive use of both cyber proxies (such as APT28/Fancy Bear) and Private Military Companies (PMCs, formerly the Wagner Group, now frequently operating under state umbrellas like the Africa Corps). Russia heavily utilizes these actors in "gray zone" conflicts to project power while maintaining plausible deniability, as seen prominently in Ukraine and various African nations. In the UN, Russia leads the push against the Western legal framework, arguing against the unilateral use of countermeasures. Instead, Russia advocates for a brand-new, legally binding international treaty on "information security" that emphasizes strict state control over domestic internet infrastructure and non-interference.

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The People's Republic of China (PRC)

China is recognized as a global superpower in state-sponsored cyber operations, primarily utilizing Advanced Persistent Threats (APTs, such as Volt Typhoon or APT41) for widespread intellectual property theft, espionage, and pre-positioning in critical infrastructure. Legally, China champions the concept of "Cyber Sovereignty," which asserts that a state has absolute right to control the information and networks within its borders. In the GA6 and the UN Open-Ended Working Group (OEWG), China generally aligns with Russia, pushing back against the Western focus on "hacking back" (countermeasures) and emphasizing that attribution must be handled through impartial, multilateral UN channels rather than unilateral accusations by Western intelligence agencies.

Iran and the Democratic People's Republic of Korea (DPRK)

Both Iran and North Korea rely heavily on state-sponsored operations as a form of asymmetric warfare to bypass international sanctions and project power against militarily superior adversaries. Iran is the most prominent state sponsor of traditional proxy warfare, funding, arming, and directing the "Axis of Resistance" (including Hezbollah, Hamas, and the Houthis), while also deploying aggressive cyber sabotage. North Korea is unique in its use of state-sponsored hacker groups (like the Lazarus Group) specifically for financial theft—stealing cryptocurrency and extorting banks to fund its state and weapons programs. Because neither state recognizes Western legal interpretations of countermeasures, they frequently exploit the high thresholds of "attribution" to avoid direct military retaliation.

Non-State Proxies (APTs, PMCs, and Hacktivists)

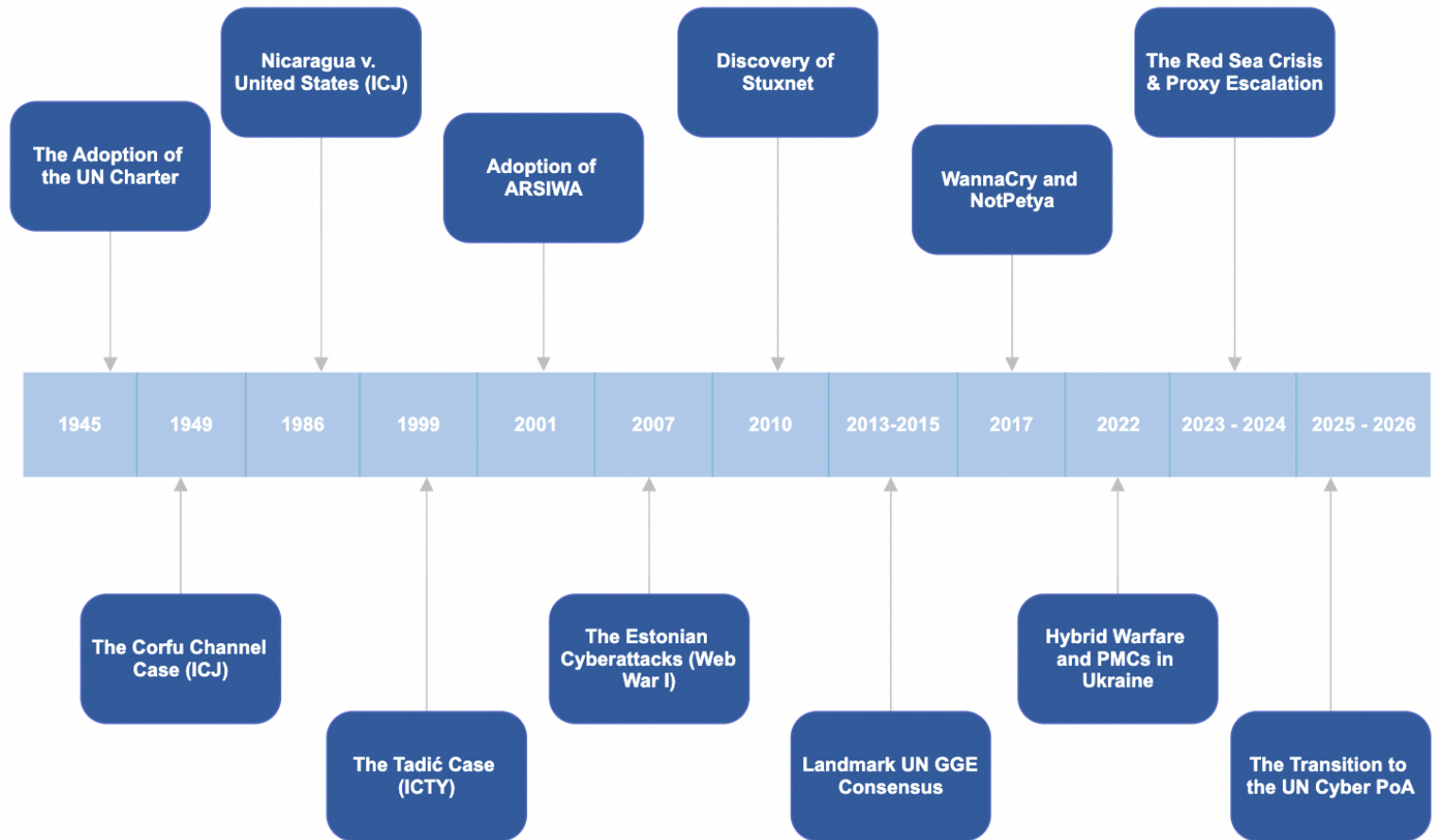
These are the actual instruments of state-sponsored operations, serving as the essential buffer that provides sponsoring governments with plausible deniability. Advanced Persistent Threats (APTs) are highly organized cyber syndicates that often operate out of government intelligence buildings but lack official military uniforms. Private Military Companies (PMCs) allow states to deploy kinetic force and extract resources globally without deploying official troops. Furthermore, the rise of "patriotic hackers"—civilian hackers who independently target their government's enemies with implicit state blessing—creates massive legal headaches for the Sixth Committee regarding the "Due Diligence" principle and whether a state must actively stop its citizens from launching cyberattacks.

The UN Open-Ended Working Group (OEWG)

While not a country, the OEWG (and the subsequent discussions surrounding the permanent UN Programme of Action, or PoA) is the primary multilateral actor in this space. Established by the General Assembly, it is the central forum where all UN member states negotiate how international law applies to the use of information and communications technologies (ICTs). The OEWG is crucial because it represents the ongoing, real-time attempt by the international community to bridge the massive legal divide between the Western bloc, the Sino-Russian bloc, and the Non-Aligned Movement on the rules of state-sponsored operation

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V. Timeline of Events



1945: The Adoption of the UN Charter

- **Event:** The foundational treaty of the UN is signed, establishing the modern laws of war.
- **Legal Significance:** It introduces **Article 2(4)** (prohibiting the "threat or use of force") and **Article 51** (guaranteeing the right to self-defense if an "armed attack" occurs). The entire debate on state-sponsored operations today revolves around interpreting whether cyberattacks or proxy funding meet the thresholds of these two articles.

April 1949: The *Corfu Channel* Case (ICJ)

- **Event:** British warships strike mines in Albanian territorial waters. The International Court of Justice (ICJ) holds Albania responsible, not because they laid the mines, but because they *knew* about them and failed to warn the UK.
- **Legal Significance:** This establishes the customary principle of "**Due Diligence.**" Today, victim states use this precedent to argue that if a government knows a hacker group or proxy militia is operating from its territory and does nothing to stop them, the state is legally responsible.

June 1986: *Nicaragua v. United States* (ICJ)

- **Event:** Nicaragua sues the US for supporting the *Contra* rebels. The ICJ rules that while the US funded, trained, and equipped the Contras, it was not legally responsible for all of the rebels' human rights violations.

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- **Legal Significance:** This establishes the "**Effective Control**" test. The court ruled a state must direct the *specific operations* of a proxy to be held responsible. Sponsoring states today heavily rely on this high threshold to maintain plausible deniability in cyber and proxy warfare.

July 1999: The *Tadić* Case (ICTY)

- **Event:** The International Criminal Tribunal for the former Yugoslavia (ICTY) evaluates the relationship between the Federal Republic of Yugoslavia and the Bosnian Serb Army.
- **Legal Significance:** The tribunal rejects the strict *Nicaragua* standard and proposes the lower "**Overall Control**" test. They argue that simply equipping, financing, and generally participating in the planning of a proxy group is enough to attribute their actions to a state. Western and victim states often favor this lower standard for attributing cyber operations.

August 2001: Adoption of ARSIWA

- **Event:** The International Law Commission (ILC) finalized the *Articles on the Responsibility of States for Internationally Wrongful Acts* after decades of drafting.
- **Legal Significance:** **Article 8** officially codifies that the conduct of a proxy is attributable to a state if acting under its "direction or control." This document remains the holy grail for GA6 delegates debating state responsibility.

April–May 2007: The Estonian Cyberattacks (Web War I)

- **Event:** Following a dispute over a Soviet war monument, Estonia's banks, government ministries, and media are paralyzed by massive state-sponsored Distributed Denial of Service (DDoS) attacks.
- **Legal Significance:** Widely attributed to Russian state-backed actors, this is considered the first major modern cyber conflict. It exposed a massive gap in international law and prompted NATO to establish the Cooperative Cyber Defence Centre of Excellence (which later drafted the Tallinn Manual).

June 2010: Discovery of *Stuxnet*

- **Event:** A highly sophisticated computer worm is discovered to have infiltrated and physically destroyed almost 1,000 nuclear centrifuges in Natanz, Iran.
- **Legal Significance:** Widely attributed to US and Israeli intelligence, *Stuxnet* crossed the Rubicon. It proved that a state-sponsored cyber operation could cross the threshold from mere espionage into causing physical, kinetic destruction—the equivalent of dropping a bomb.

2013 & 2015: Landmark UN GGE Consensus

- **Event:** The UN Group of Governmental Experts (GGE) on the use of ICTs issues breakthrough reports.
- **Legal Significance:** All participating states (including the US, Russia, and China) formally agree that **existing international law, particularly the UN Charter, applies to cyberspace**. However, they leave the exact mechanisms of *how* it applies unresolved, kicking the can down the road to the current GA6.

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May & June 2017: *WannaCry* and *NotPetya*

- **Event:** Two devastating global ransomware attacks occur. *WannaCry* (attributed to North Korea) cripples the UK's National Health Service. *NotPetya* (attributed to Russia), initially aimed at Ukraine, spreads globally, causing over \$10 billion in indiscriminate damages to international shipping and multinational corporations.
- **Legal Significance:** These attacks highlighted the severe collateral damage of state-sponsored operations and sparked aggressive debates on whether victim states have the legal right to use "countermeasures" (hacking back) against sponsoring states.

February 2022: Hybrid Warfare and PMCs in Ukraine

- **Event:** Russia launches a full-scale invasion of Ukraine. The conflict features the total integration of state-sponsored operations: wiping malware (WhisperGate) deployed against Ukrainian infrastructure, the massive use of the Wagner Group (a PMC), and Ukraine's mobilization of a volunteer "IT Army."
- **Legal Significance:** This deeply blurred the lines of *Jus in bello* (International Humanitarian Law). If a state directs civilian hackers (the IT Army) to launch cyberattacks, do those civilians legally lose their protected status and become lawful military targets?

2023–2024: The Red Sea Crisis & Proxy Escalation

- **Event:** The Houthi movement in Yemen, armed and backed by Iran, begins launching drone and missile attacks against international commercial shipping in the Red Sea, claiming solidarity with Palestine.
- **Legal Significance:** This severely tested the limits of Article 51 (Self-Defense) and state responsibility. The US and UK launched kinetic strikes against the proxies, highlighting the dilemma of holding a sponsoring state (Iran) legally accountable for proxy actions in international waters.

2025–2026: The Transition to the UN Cyber PoA

- **Event:** The 2021–2025 mandate of the UN Open-Ended Working Group (OEWG) concludes. The UN General Assembly transitions toward establishing the **Programme of Action (PoA)** on cybersecurity.
- **Legal Significance:** This is the most current UN development. The PoA is designed to be a permanent, single-track, institutional dialogue to handle state behavior in cyberspace. It represents the international community's shift away from temporary working groups toward creating a permanent accountability mechanism to monitor state-sponsored operations and assist developing nations with capacity building

VI. Relevant UN Treaties and Events

Delegates must understand the existing legal architecture and the recent major events that have shaped the current debate on state-sponsored operations.

- **The UN Charter (1945):**
 - **Article 2(4):** Prohibits the "threat or use of force." Does a devastating hack constitute a use of force?
 - **Article 51:** Guarantees the right of self-defense if an "armed attack" occurs.
- **ARSIWA (2001):** The International Law Commission's *Articles on the Responsibility of States for Internationally Wrongful Acts*.
- **The Principle of Non-Intervention:** Customary international law dictating that states must not intervene in the internal affairs of another state. State-sponsored election interference via disinformation is highly debated under this principle.
- **The Tallinn Manual 2.0 (2017):** Authored by international legal scholars at NATO's Cyber Defence Centre of Excellence. It is not legally binding but is the most widely cited academic study on how international law applies to cyber operations.
- **The UN Cybercrime Convention (Adopted Dec 2024 / Signed Oct 2025):** This treaty was opened for signature in Hanoi, Vietnam, in late 2025. Initiated by Russia, it is the first comprehensive global treaty on cybercrime. While it establishes a framework for cross-border electronic evidence sharing, it is highly controversial. Western nations and human rights groups argue it lacks sufficient safeguards and could be used by authoritarian states to criminalize political dissent or journalists under the guise of "cybersecurity."

VII. Previous Attempts to Solve the Issues

- **UN GGEs and OEWGs:** For two decades, the UN has used **Groups of Governmental Experts (GGEs)** and **Open-Ended Working Groups** to establish norms. While they agreed international law applies, negotiations frequently stall on how it applies—specifically regarding countermeasures and human rights.
- **The Due Diligence Principle:** Based on the *1949 Corfu Channel* case, states have attempted to argue that if a government knows a proxy or hacker is operating from its territory and does nothing to stop it, the state is legally responsible. However, enforcing this in countries lacking technological capacity is highly controversial.
- **Regional Frameworks:** The European Union implemented the Cyber Diplomacy Toolbox, allowing the EU to impose joint economic sanctions on individuals and entities involved in state-sponsored cyberattacks, effectively bypassing the UN Security Council's gridlock.

VIII. Possible Solutions

- a. **Codifying the "Scale and Effects" Test:** A resolution could formally define that a state-sponsored cyber operation qualifies as a "use of force" (Article 2(4)) or an "armed attack" (Article 51) strictly based on its scale and effects (e.g., if it causes physical injury, death, or severe infrastructure destruction comparable to a kinetic weapon).
- b. **Refining the "Due Diligence" Standard:** GA6 could draft guidelines clarifying the principle of due diligence. Instead of immediately holding a state responsible for a proxy hack, the state would be required to cooperate with international investigations. Failure to cooperate would then trigger state responsibility.
- c. **Establishing Thresholds for Countermeasures:** Drafting a framework that standardizes when a victim state can use countermeasures, ensuring they are strictly proportional, temporary, and do not escalate into kinetic warfare.
- d. **Support for the Programme of Action (PoA):** Endorsing the transition from the OEWG to a permanent, transparent UN registry where states voluntarily declare their national interpretations of how international law applies to state-sponsored operations

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IX. Sources & Recommended reading

1. **Charter of the United Nations** (Chapters VI, VII, specifically Articles 2(4) and 51).
Link: [UN Charter Full Text](#)
2. **ILC Articles on State Responsibility (ARSIWA), 2001** (Specifically Chapter II: Attribution of conduct to a State).
Link: [ARSIWA 2001 pdf](#)
3. **ICJ Case Law: Military and Paramilitary Activities in and against Nicaragua** (*Nicaragua v. United States*), 1986.
Link: [Military and Paramilitary Activities in and against Nicaragua](#)
4. **ICJ Case Law: Corfu Channel** (*United Kingdom v. Albania*), 1949 (Foundational for Due Diligence).
Link: [Corfu Channel Case](#)
5. **The Tallinn Manual 2.0 on the International Law Applicable to Cyber Operations**.
Link: [Tallinn Manual](#)
6. **Recent UN OEWG Reports: Final Annual Progress Reports of the UN Open-Ended Working Group on ICTs (2021-2025 mandate)**.
Link: [UNODA: Information and Communication Technologies](#)